Committee: Historical Security Council (HSC)

Topic: The Arab Spring (2011)

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Introduction

Between December 2010 and February 2011, a wave of protest swept across the Middle East and North Africa on a scale unseen in the region for decades. The countries involved differ in size, wealth, and form of government, but their populations shared similar complaints. Most were ruled by leaders who had held power for decades under emergency laws, with elections that offered no real choice. Unemployment was high, especially among young graduates, food prices were rising, and corruption meant that jobs, contracts, and land went to those close to the ruling family. Most of all, protesters called for dignity: the right to fair treatment from police and officials, and the ability to hold their governments responsible for the way they exercised power. These shared grievances explain why a protest in one small town could be understood across the whole region.

In December 2010, in the small Tunisian town of Sidi Bouzid, a twenty-six-year-old street vendor named Mohamed Bouazizi set himself on fire in protest against the confiscation of his goods and at the hands of local officials. His death on 4 January 2011 gave voice to a population long burdened by unemployment, corruption, and the absence of political freedom. What began as a single act of protest spread into a nationwide movement, and on 14 January 2011, President Zine El Abidine Ben Ali fled the country after twenty-three years in power, becoming the first Arab head of state to be driven from office by his own people. This event, later known as the Jasmine Revolution, marked the beginning of what the world now calls the Arab Spring.



Self-immolation of Mohamed Bouazizi - ResearchGate

What happened in Tunisia did not stay in Tunisia. On 25 January 2011, mass protests filled Tahrir Square in Cairo, and after eighteen days Hosni Mubarak stepped down on 11 February, ending nearly thirty years of rule over the most populous country in the Arab world. Protests demanding the resignation of President Ali Abdullah Saleh began in Yemen in late January, and on 14 February demonstrators occupied the Pearl Roundabout in Manama, Bahrain. In less than two months, two governments that had been in power for decades had fallen, and the people of the region had learned that these governments were not permanent, and street protests could remove them.

The outcomes, however, have been far from uniform. In Tunisia and Egypt, the army stayed out of the fight against protesters and the leader was gone within weeks. In Yemen, President Saleh has promised not to run for office again but refuses to leave before his term ends, and protests continue. In Bahrain, security forces cleared the Pearl Roundabout on 17 February, killing several protesters. Elsewhere, governments have tried to stop unrest before it grows. The King of Jordan dismissed his government in early February, smaller protests have taken place in Algeria and Morocco, and in Syria, where online calls for a “Day of Rage” drew almost no one in early February, around 1,500 people gathered in central Damascus on 17 February after police beat a young man. The same demands have therefore produced quick transitions in some states, violent crackdowns in others, and promises of reform in the rest.

Libya has not followed the same pattern. Muammar Gaddafi has held power for forty-two years, longer than any other leader in the Arab world. Protests began in Benghazi on 15 February 2011 after the arrest of Fathi Terbil, a lawyer representing the families of prisoners killed by the government in 1996. On 17 February, a "Day of Rage" spread to Al Bayda, Ajdabiya, Derna, and Zintan. The past week has produced the most serious reports of any state's treatment of its own

population since these uprisings began. Human Rights Watch(HRW) has recorded at least 233 people killed in five Libyan cities in the first four days alone, based on counts from hospital staff, and states openly that it cannot reach every hospital. Other organisations have given figures several times higher, and none of these numbers can currently be verified, because the government has cut internet access across the country and has arrested Libyans who spoke to foreign media by social media. On 21 February, two Libyan Air Force defected their fighter jets to Malta and asked for asylum, telling the authorities that they had been ordered to bomb protesters in Benghazi and had refused. On the same day, Libyan ambassadors in several capitals resigned in public.



Two Libyan fighter pilots defect to Malta - Times of Malta

On 22 February 2011, Muammar Gaddafi appeared on state television and spoke for over an hour. He refused to step down, stating that he is the leader of the revolution. He denied that his forces had used force at all, while adding that he was entitled to use it. He then told his supporters to go out and take back the streets from those he called rats, and promised to clean the country inch by inch, house by house, room by room, alley by alley.



Muammar Gaddafi says he will die a martyr rather than quit - The Guardian

Libya's deputy representative at the United Nations called for an international investigation into what he described as crimes against the Libyan people. The Security Council convened in response to the request submitted by Libya's Deputy Permanent Representative to the UN.

Definition of Key Terms

The Arab Spring

The Arab Spring refers to anti-government uprisings, protests, and armed rebellions that spread across the Middle East and North Africa beginning in late 2010. The reasons for this event were the widespread complaints over corruption, economic hardship, and the lack of political freedoms. The Arab Spring began in Tunisia and swiftly extended to Egypt, Libya, Yemen, Bahrain, Syria, and other countries. Its outcomes varied considerably from one country to another, ranging from the peaceful removal of long-standing dictators to civil war. The term therefore reflects not a single event, but the broader regional wave of popular unrest and anti-government protest that challenged the established political order across the Arab world.



February 18, 2011, Tahrir Square in Cairo, Egypt - The Harvard Gazette

Responsibility to Protect (R2P)

The Responsibility to Protect is a principle accepted by every Member State at the 2005 World Summit and documented in paragraphs 138 and 139 of the outcome. Each state carries the primary responsibility of protecting its population from genocide, war crimes, ethnic cleansing, and

crimes against humanity. Under this principle, the international community carries the obligation of assisting states in the fulfilment of that responsibility. Where a state clearly fails to protect its population, and where peaceful means prove inadequate, Member States possess the right to take action such as prevention, reaction, intervention via the UN Security Council and rebuilding.

State Sovereignty

State sovereignty is the principle that each state holds supreme authority over its own territory and domestic affairs, free from external interference. In the case of the Arab Spring, sovereignty became the central point of tension, as states resisting intervention argued that a government's treatment of its own population is an internal matter, while those favoring action held that sovereignty cannot shield a regime that turns violence upon its own people.

No-Fly-Zone

A no-fly zone is a designated airspace in which certain aircraft, most often those of a targeted government's military, are prohibited from flying. It is enforced by the aircraft of intervening states, which patrol the area and may fire upon any aircraft that violates the ban. The purpose is to deny a regime the use of its air power against civilians. Enforcing a no-fly zone, however, requires disabling the target state's air defenses, which is considered as an act of war rather than a protective measure.

Asset Freeze

An asset freeze is a measure that blocks named individuals or entities from accessing financial resources held under the jurisdiction of the states enforcing it. It is a form of targeted sanction, intended to pressure a regime's leadership without directly harming the wider population. An asset freeze could be imposed on officials as a solution to restrict their ability to fund internationally wrongful acts.

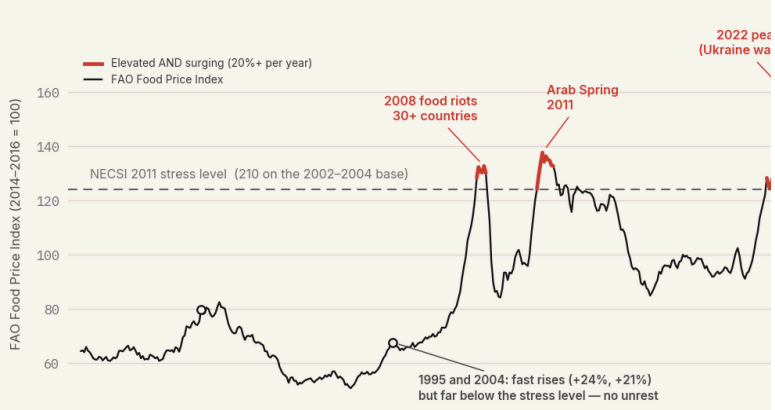
Background Information

Economic Pressure Across the Region

The Arab world has the youngest population of any region. Around six in ten people are under the age of thirty, and youth unemployment stands as the highest rate in the world according to International Labour Organization figures. The number of graduates rose faster than the number of jobs, so the people most likely to be out of work were often the ones who had studied longest. Moreover, public hiring slowed after governments cut spending and sold state companies in the 1990s, and access to the few jobs available usually depended on connections to the ruling party.

Prices then rose sharply in the months before the protests. The Food and Agriculture Organization's food price index reached a high level in December 2010 and rose again in January 2011. This affects the Middle East and North Africa more than any other region, because it imports more grain per person than anywhere else and depends on world markets for basic food. As a result, rising prices created anger, and aggravated pre-existing social unrest in countries including Egypt, Syria, and Morocco. This, in turn, made humanitarian aid from the international community necessary.

However, the economic figures did not look like a crisis. Growth rates were positive, especially in the oil-producing states. The problem was distribution. Contracts, licences, and land were awarded to families connected to the leadership, so the benefits of growth were visible to the public without being available to it. Mohamed Bouazizi was a street vendor whose goods were confiscated by officials, and his case was recognisable across the region for that reason.



World food prices reach a record high in January 2011 - Eco3min

Long-term Authoritarian Rule

Most governments in the region have been in place for a very long time. Several leaders have held power for more than twenty years, and in some cases for more than forty. Elections were held, but opposition parties were banned or restricted. As a result, the ruling party won every time. Emergency laws have been in force continuously for decades in a number of states, allowing arrest without charge, banning public assembly, and permitting trial before special courts. Large internal security services operate alongside the regular police, and human rights organisations have documented torture and detention without trial in most countries across the region.

What has decided the outcome so far is the position of the armed forces. Where the army is a national institution, it refused to fire on large crowds and the leader was removed within weeks. Where the army was built to protect the ruling family rather than the state and is commanded by relatives, as in Libya, it has stayed loyal and the violence has escalated.



Ben Ali, Saleh, Gaddafi and Mubarak at the Afro-Arab Summit in Sirte, October 2010 - Los Angeles Times

The Development of Sanctions Practice

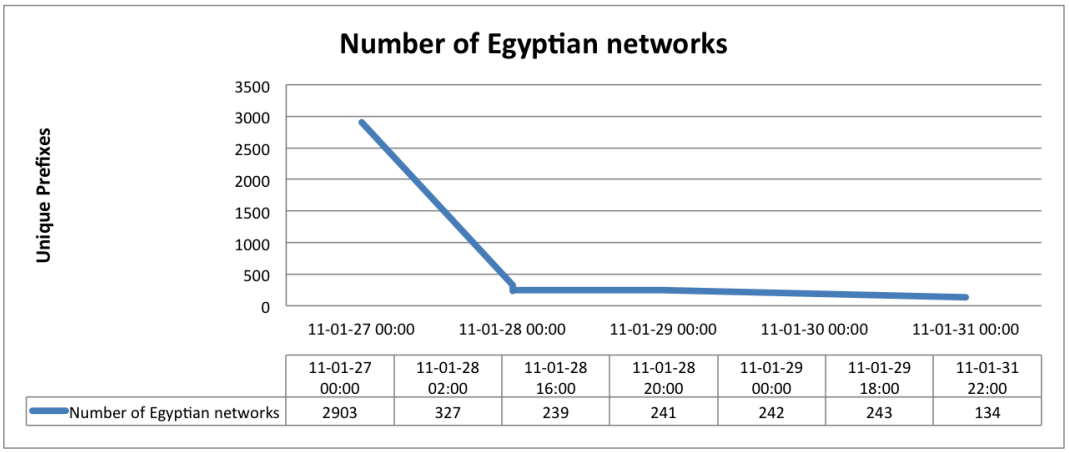
Sanctions have become the Council's main tool between statements and force, but the form they take has changed considerably. Before 1990, the Council imposed sanctions only twice in its history. During the 1990s it used them frequently, and the early measures were comprehensive, meaning that they restricted trade with an entire country rather than with named individuals. The most extensive example imposed on Iraq in 1990 remained in place for over a decade. The results led to serious criticism since trade restrictions reduced the supply of food, medicine, and equipment for the population, while the leadership retained access to resources.

Practice therefore shifted towards targeted sanctions, developed through a series of expert processes hosted by Member States between 1998 and 2003. Practice consists of arms embargoes, a freeze on the assets of named individuals and entities, and a ban on their international travel, administered by a sanctions committee of the Council. However, there are some limitations. Targeted measures depend entirely on implementation by individual states. For instance, an asset freeze reaches only funds held in cooperating jurisdictions, and an arms embargo without monitoring is difficult to enforce. Sanctions of this type are the measures most likely to attain support in this Council, but they act over a long time, which is the main objection raised by those calling for faster action.

The Widespread Use of Media

The protests of the past two months spread faster than any previous wave of unrest in the region, and the main reason is that governments no longer control what their populations see. Satellite television channels broadcasting from outside national jurisdiction carried footage of the Tunisian demonstrations into homes across the Arab world. Cameras allowed participants to record events that officials denied had taken place, and that footage was spread to audiences.

Governments responded by cutting the networks. Egypt disconnected almost all internet access for around five days at the end of January, the first time a state had removed an entire country from its network. Libya cut access from approximately 18 February and has banned telephone service. Foreign journalists have been refused entry or expelled, and Libyans who spoke to foreign media have been arrested. The government uses this to argue that reporting has been exaggerated, while others argue that a state which cuts communications and expels observers cannot be considered innocent.



Internet in Egypt Offline - BGPmon

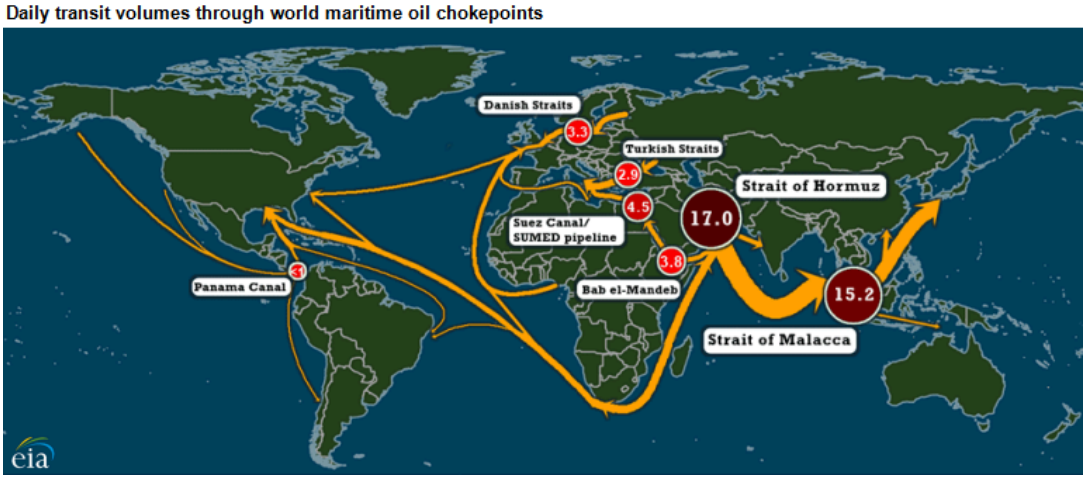
Cross-border Consequences

The uprisings of the past two months have not stayed within national borders, and this matters for what the Council is able to do. The clearest effect is the movement of people. The Arab world depends heavily on migrant workers, with millions of people employed in construction, oil, and services, and workers leave first when a country becomes unstable. Since January, several thousand Tunisians have crossed the Mediterranean to the Italian island of Lampedusa, and Italy has declared a humanitarian emergency. Foreign workers are now leaving in large numbers, and the countries receiving them lack the food, shelter, and medical capacity to support them. Countries that host migrant workers elsewhere in the region face the same pressure due to following reasons: space, resources and security.



Tunisian migrants arrive by boat on the Italian island of Lampedusa, February 2011 - Middle East Monitor

The second effect is energy. The region supplies a large share of world oil and controls the Suez Canal and the Strait of Hormuz, so unrest anywhere in it moves global prices. Bahrain sits beside the largest oil-producing region in the world and is connected to Saudi Arabia, which is why events there are treated by neighbouring governments as a shared security question rather than a domestic matter.



World oil transit chokepoints critical to global energy security - EIA

Cross-border movements of people, pressure on energy supply and shipping, and the risk of instability spreading are the effects on which any such determination would have to be based. Those arguing for action should make that connection directly rather than assuming it. By contrast, those opposing it should be prepared to argue that these are consequences of a domestic matter.

Possible Solutions

Delegates must keep in mind that, due to the nature of the Historical Security Council, the debate is fixed at a specific timeline in the past that will serve as a temporal date for the debate (February 22, 2011). Therefore, delegates must refrain from mentioning any formal actions inconsistent with the date of the debate, including resolutions, documents, speeches, among others.

Non-military Measures

The most immediate and least controversial solution is the delivery of humanitarian aid to the civilians affected by the fighting. Food, water, medical supplies, and fuel are already running low across the region. Hundreds of thousands of foreign workers are trapped inside the country or waiting at the borders. This Council could call for safe humanitarian aid and request the cooperation of the state authorities. Since this approach does not challenge the sovereignty of any state, it is the one measure that every member of this Council can be expected to accept.

However, humanitarian aid treats the results of the violence rather than its cause. Aid convoys cannot enter a city that is being shelled, and relief workers cannot operate where their safety is not guaranteed. Some governments have so far refused to allow independent observers into the areas they control, which means that aid would reach only the regions held by the opposition.

Between humanitarian aid and force lies a range of measures that impose costs without deploying troops. An arms embargo, asset freeze and travel ban would restrict the actions of a nation without direct intervention. Referral to the International Criminal Court would be an action to place those responsible under formal investigation.

However, these measures operate on a timescale that the violence does not. An asset freeze reaches only the funds held in cooperating jurisdictions. An arms embargo restricts a government that is already armed far less than an opposition that is not. The International Criminal Court has no police force of its own and depends on states to arrest suspects.

Military Measures

The final solution is the authorization of military force. Such action would be based on the Responsibility to Protect, which the General Assembly accepted in 2005 and which states that the international community may act when a government clearly fails to protect its own people. The failures of Rwanda in 1994 and Srebrenica in 1995 are frequently raised in support of this position. This is also the only solution that can produce an effect within days rather than months.

However, enforcing it requires the destruction of a nation's defenses, which means that this Council would be authorizing an act of war against a member state of the United Nations. The resolution would also need to define clearly where the protection of civilians ends and where the removal of a government begins, since these two aims can easily become confused.

Major Parties Involved

Great Socialist People's Libyan Arab Jamahiriya

The Libyan government holds that what is happening inside its borders is not a protest movement but an armed rebellion, since under international law a state holds the right to suppress an armed rebellion by force, whereas the violent suppression of unarmed protesters would trigger the responsibility to protect. Officials point out that armed groups have taken over military bases, police stations, and government buildings. Furthermore, the government proposes that weapons taken from those buildings are now in the hands of people who are not part of any state force. From the government's position, no country in the world would leave such a situation alone and would take the same steps that any state would take to restore order. It also states that foreign media reports have exaggerated what is happening and that outside groups are encouraging the uprising.

Libya must decide how to defend that argument before a Council whose members are openly discussing sanctions, and whether it is willing to allow aid workers or observers into the country to support what it is saying.

Republic of Tunisia

Tunisia is where the events of the past two months began, and it is now run by a temporary government that has been in place for only about five weeks. Its police force is being rebuilt, its political parties are only now being formed, and no elections have been held. Because of this, Tunisia is in no position to take part in military action abroad, and its main concern is holding its own country together. However, Tunisia shares a long border with Libya, and thousands of people are already crossing at Ras Jdir every day. Most of them are foreign workers who were employed in Libya and are now trying to get out, and Tunisia does not have the food, shelter, or medical supplies to take care of them. Tunisia is also careful about the idea of outside powers acting against a government that is dealing with protests, since its own uprising was very recent and it does not want that door opened.

Tunisia must decide whether to ask this Council for humanitarian support at its border, and how to do so without supporting measures that could bring war to the country next to it.

French Republic

France has taken the strongest position of any European state so far and is expected to argue for early action. Libya lies across the Mediterranean Sea from southern Europe, and any large movement of people leaving North Africa reaches Europe through Italian waters, but many of those arriving hope to continue on to France. France therefore treats this as a matter that affects its own security, not only a distant crisis.

France must decide how far ahead of its partners it is willing to move, since a strong resolution needs the support of the other permanent members of this Council. It must also decide what it will do if that support does not come, and whether acting with a small group of states outside this Council would help the situation or only divide it further.

United States of America

The United States has the strongest military of any member of this Council and is the only state able to carry out the first days of a no-fly zone on its own. Even so, it is moving carefully. American forces are already fighting in Afghanistan and Iraq, public support at home for a third military operation is low, and Washington is aware that another American war in a Muslim country would be used against it across the region. Its first action so far has been to remove its diplomats and citizens from Libya.

The US must decide whether it will lead a military operation or push for sanctions first, and whether it is prepared to act if another permanent member uses the veto to block whatever it proposes.

Russian Federation

The Russian Federation holds that the situation in Libya is an internal matter and that this Council has no authority to decide who governs a member state. Russia argues that the Council's powers under the Charter were written for conflicts between countries, and that using them to judge how a government treats its own people would leave no clear line for when the Council may act in the future. It also warns that once such a line is crossed, the same argument could later be used against other states.

Russia must decide whether to use its veto directly, or whether to let limited measures pass while keeping the wording narrow enough that it cannot later be used to justify the use of force.

United Kingdom of Great Britain and Northern Ireland

The United Kingdom is a permanent member of this Council and supports early action, but it has moved more carefully than France. Around five hundred British nationals are still inside Libya. None of them have been taken out yet and every route they would use including airports, ports, and roads is controlled by the same government that any measure from this Council would aim at.

The UK must decide whether to push for sanctions now or wait until its people are safely out. It must also decide how closely to stand with France, since moving together makes a resolution stronger.

People's Republic of China

Anonymous calls for public gatherings circulated in several Chinese cities on 20 February and were met with a substantial security presence. China also holds material interests in Libya. Thirty thousand Chinese people are employed there on railways, housing, and oilfield contracts, and their removal from the country has begun.

China must decide whether to exercise its veto against direct intervention of external states in Libya or to abstain and allow narrowly drafted solutions and aids to pass.

Federal Republic of Germany

Germany took a non-permanent seat on this Council at the beginning of January 2011 and is among the largest contributors to NATO, an alliance it has worked inside for decades. So far Germany has favoured pressure without force. It is open to an arms embargo, an asset freeze, and a travel ban on the Libyan leadership, but it treats a no-fly zone as a commitment with no clear end. It also holds that bombing a state could harm the population. This position made Germany to vote abstain on resolution 1973, alongside China and Russia.

Germany must decide whether it will follow the direction its partners are taking or hold to its own view that force would leave Libyans worse off than the measures already available to this Council.

Italian Republic

Italy is one of the closest European states to Libya and the most exposed. Around five thousand Tunisians have already reached the island of Lampedusa since January, and Italy declared a humanitarian emergency on 12 February. If Libya becomes unstable as well, the numbers will be far larger.

Italy must decide whether to support nations in pressing for early action, which would go against its own obligations under the Treaty of Benghazi as well as its commercial interests and put Italy's political reputation at risk, or to argue for slower measures. It must also decide what it will ask of this Council, since any large movement of people across the Mediterranean will reach Italian ports first.

Arab Republic of Egypt

Egypt has been without a president for only eleven days. Since Hosni Mubarak stepped down on 11 February, the country has been run by the Supreme Council of the Armed Forces, which has suspended the constitution, dissolved parliament, and promised elections within around six months. Its first concern is stability at home. However, Egypt shares a long border with Libya, and estimates of the number of Egyptians working there range from several hundred thousand to around 1.5 million. They are now beginning to cross back through the Salloum border crossing, and a temporary government still dealing with strikes and protests does not have the capacity to receive them all at once.

Egypt must decide whether to support stronger measures against the Libyan government or to focus only on the return of its citizens, and how a government that came to power through popular protest can argue against protecting protesters next door.

Syrian Arab Republic

Syria has so far avoided large protests. President Bashar al-Assad has ruled since 2000, and the country has been under an emergency law since 1963. On 31 January, Assad told the Wall Street Journal that Syria is different from Egypt, and online calls for a “Day of Rage” in early February drew almost no one. However, on 17 February, around 1,500 people gathered in Damascus after police beat a young man. Syria is therefore expected to argue strongly for state sovereignty, since any principle used against Libya could later be used against Syria itself.

Syria must decide whether to defend the Libyan government directly, or to stay with the general principle of sovereignty without standing beside a leader openly threatening his own people.

Timeline Of Events

Date	Description of Event
December 17, 2010 *Self-immolation of Mohamed Bouazizi*	The first move of The Arab Spring, catalyzed by the self-immolation of a 26-year-old street vendor.
January 14, 2011 *Ouster of Ben Ali*	President Zine El Abidine Ben Ali is forced out by popular protest and flees to Saudi Arabia after 23 years in power in Tunisia.
January 25, 2011 *Egyptian Revolution*	Mass protests erupt in Cairo's Tahrir Square, marking the start of the Egyptian uprising against President Hosni Mubarak.
January 27, 2011 *Yemeni Revolution*	Large-scale protests break out demanding the resignation of President Ali Abdullah Saleh.
February 11, 2011 *Resignation of Mubarak*	After 18 days of protest, Hosni Mubarak steps down, ending nearly 30 years of rule.
February 14, 2011 *Bahraini Uprising*	Protesters gather at Pearl Roundabout in Manama, launching demonstrations against the ruling Al Khalifa monarchy.
February 17, 2011 *Day of Rage in Libya*	Protests erupt in Benghazi and spread rapidly; February 17 is declared the "Day of Rage" against Gaddafi's regime.
February 22, 2011 *Gaddafi's Speech* *(Debate will start here)*	Gaddafi declares on state television, "I am not going to leave this land. I will die here as a martyr," refusing to step down and vowing to crush the uprising by force.

UN Involvement, Resolutions, Treaties and Events

The 2005 World Summit Outcome established the principle known as the Responsibility to Protect, where such peaceful means prove inadequate and national authorities manifestly fail to protect their populations, Member States declared themselves prepared to take action through the Security Council and in accordance with the Charter.

- General Assembly Adopts the 2005 World Summit Outcome Establishing the Responsibility to Protect Populations from Genocide, War Crimes, Ethnic Cleansing and Crimes Against Humanity in Paragraphs 138 and 139, October 2005, A/RES/60/1

In the aftermath of the Arab Spring, the Security Council sought to respond to the deteriorating situation in the Libyan Arab Jamahiriya through the adoption of two resolutions. Determining that the situation continued to pose a threat to international peace and security, the Council authorised Member States to take all necessary measures to protect civilians and civilian populated areas under threat of attack. However, delegates should note that no resolution has been adopted, since the time period of this committee is February 22, 2011. Therefore, no formal action has been taken, no embargo imposed, no sanctions levelled and no referral made.

- Security Council Adopts Resolution imposing an Arms Embargo, a Travel Ban and an Assets Freeze in Connection with the Situation in the Libyan Arab Jamahiriya, 26 FEBRUARY 2011, S/RES/1970

- Security Council Adopts Resolution Authorizing All Necessary Measures to Protect Civilians and Establishing a No-Fly Zone in Connection with the Situation in the Libyan Arab Jamahiriya, 17 MARCH 2011, S/RES/1973

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